

Section 114: Inquiry by Commissioner. –

- 1) On the receipt of a notice under section 113 of the occurrence of an accident to a train carrying passengers resulting loss of human life or grievous hurt causing total or partial disablement of permanent nature to a passenger or serious damage to railway proper, the Commissioner shall as soon as may be, notify the railway administration in whose jurisdiction the accident occurred of his intention to hold an inquiry into the causes that led to the accident and shall at the same time fix and communicate the date, time and place of inquiry
Provided that it shall be open to the Commissioner to hold an inquiry into any other accident which, in his opinion, requires the holding of such an inquiry.
- 2) If for any reason, the Commissioner is not able to hold an inquiry as soon as may be after the occurrence of the accident, he shall notify the railway administration accordingly.

Section 115: Inquiry by Railway Administration –

Where no inquiry is held by the Commissioner under sub-section (1) of Section 114 or where the Commissioner has informed the railway administration under sub-section (2) of that section that he is not able to hold an inquiry, the railway administration within whose jurisdiction the accident occurs, shall cause an inquiry to be made in accordance with the prescribed procedure.

Section 116: Powers of Commissioner in relation to Inquiries For the purpose of conducting an inquiry under this Chapter into the causes of any accident on a railway, the Commissioner shall, in addition to the powers specified in Section 7, have the powers as are vested in a civil Court while trying a suit under the Code of Civil Procedure, 5 of 1900, in respect of the following matters, namely:-

- a. summoning and enforcing the attendance of persons and examining them on oath;
- b. requiring the discovery and production of documents;
- c. receiving evidence on affidavits;
- d. requisitioning any public record or copies thereof from any Court or office;
- e. any other matter which may be prescribed.

The Commissioner while conducting an enquiry under this Chapter shall be deemed to be a Civil Court for the purpose of section 195 and Chapter XXVI of the code of criminal procedure, 1973 (2 of 1974)

Section 117: Statement made before Commissioner – No statement made by a person in the course of giving evidence in an inquiry before the Commissioner shall subject him to, or be used against him in, any civil or criminal proceeding, except a prosecution for giving false evidence by such statement:

Provided that the statement is –

- a) made in reply to a question which is required by the Commissioner to answer, or
- b) relevant to the subject – matter of the inquiry.

Section 118: Procedure, etc – Any railway administration or the Commissioner conducting an inquiry under this Chapter may send notice of the inquiry to such persons, follow such procedure, and prepare the report in such manner as may be prescribed.

Section 119: No inquiry investigation etc. to be made if the Commission of Inquiry is appointed – Notwithstanding anything contained in the foregoing provisions of this Chapter, where a Commission of Inquiry is appointed under the Commission of Inquiry Act, 1952 (3 of 1952) to inquire into an accident, any inquiry, investigation or other proceeding pending in relation to that accident shall not be proceeded with, and all records or other documents relating to such inquiry shall be forwarded to such authority as may be specified by the Central Government in this behalf.

Section 120: **Inquiry into Accident not covered by Section 113** – Where any accident of the nature not specified in section 113 occurs in the course of working a railway, the railway administration within whose jurisdiction the accident occurs, may cause such inquiry to be made into the causes of the accident, as may be prescribed.

Section 121: **Returns** – Every railway administration shall send to the Central Government, a return of accidents occurring on its railway, whether attended with injury to any person or not, in such form and manner and at such intervals as may be prescribed.

Section 122: **Power to make rules in respect of matters in this chapter** –

- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter
- (2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:
 - (a) the injury to property which shall be considered serious under clause (a) of sub-section (1) of section 113;
 - (b) the forms of notice of accidents to be given under Section 113 and the particulars of the accident such notices shall contain;
 - (c) the manner of sending the notices of accidents, including the class of accidents to be sent immediately after the accident;
 - (d) the duties of the Commissioner, railway administration, railway servants, police officers and Magistrates on the occurrence of an accident;
 - (e) the persons to whom notices in respect of any inquiry under this Chapter are to sent, be the procedure to be followed in such inquiry and the manner in which a report of such inquiry shall be prepared;
 - (f) the nature of inquiry to be made by a Railway Administration into the causes of an accident under Section 120;
 - (g) the form and manner sending a return of accidents by a Railway Administration under Section 121.

5 Sections relating to Liability of Railway administration for Death and Injury to passengers due to Accidents:

Section 123: **Definitions** –In this Chapter, unless the context otherwise requires –

- a) “accident” means an accident of the nature described in Section 124;
- b) “Dependant”, means any of the following relatives of a deceased passenger, namely:
 - i. the wife, husband, son and daughter, and in case the deceased passenger is unmarried or is a minor, his parent;
 - ii. the parent, minor brother or unmarried sister, widowed sister, widowed daughter-in-law and a minor child of a predeceased son, if dependant wholly or partly on the deceased passenger;
 - iii. a minor child of a pre-deceased daughter, if wholly dependent on the deceased passenger
 - iv. the paternal grandparent wholly dependent on the deceased passenger.

Section 124: **Extent of liability** – When in the course of working a railway, an accident occurs, being either a collision between trains of which one is a train carrying passengers or the derailment of or other accident to a train or any part of a train carrying passengers, then whether or not there has been any wrongful act, neglect or default on the part of the railway administration such as would entitle a passenger who has been injured or has suffered a loss to maintain an action and recover damages in respect thereof, the railway administration shall, notwithstanding anything contained in any other law, be liable to pay compensation to such extent as may be prescribed and to that extent only for loss occasioned by the death of a passenger dying as a result of such accident, and for personal injury and loss, destruction, damage or deterioration of goods owned by the passenger and

accompanying him in his compartment or on the train, sustained as a result of such accident.

Explanation – For the purpose of this section ‘passenger’ includes a railway servant on duty.

Section 125: Application for Compensation:

- (1) An application for compensation under section 124
(or section 124-A) may be made to the Claims Tribunal—
 - (a) by the person who has sustained the injury or suffered any loss, or
 - (b) by any agent duly authorized by such person in this behalf, or
 - (c) where such person is a minor, by his guardian, or
 - (d) where death has resulted from the accident, (or the Untoward incident) by any dependant of the deceased or where such a dependant is a minor, by his guardian.
- (2) Every application by a dependant for compensation under this section shall be for the benefit of every other dependant.

Section 126: Interim relief by Railway Administration –

- (1) Where a person who has made an application for compensation under section 125 desires to be paid interim relief, he may apply to the railway administration for payment of interim relief along with a copy of the application made under that section.
- (2) Where, on the receipt of an application made under sub-section (1) and after making such inquiry as it may deem fit, the railway administration is satisfied that circumstances exist which require relief to be afforded to the applicant immediately, it may, pending determination by the Claims Tribunal of the actual amount of compensation payable under section 124 pay to any person who has sustained the injury or suffered any loss or where death has resulted from the accident, to any dependant of the deceased, such sum as it considers reasonable for affording such relief, so however, that the sum paid shall not exceed the amount of compensation payable at such rates as may be prescribed.
- (3) The railway administration shall, as soon as may be, after making an order regarding payment of interim relief under sub-section (2) send a copy thereof to the Claims Tribunal.
- (4) Any sum paid by the railway administration under sub-section (2) shall be taken into account by the Claims Tribunal while determining the amount of compensation payable.

Section 127: Determination of compensation in respect of any Injury or Loss of Goods –

- (1) Subject to such rules as may be made, the rates of compensation payable in respect of any injury shall be determined by the Claims Tribunal.
- (2) The compensation payable in respect of any loss of goods shall be such as the Claims Tribunal may, having regard to the circumstances of the case, determine to be reasonable.

Section 128: Saving as to certain rights –

- (1) The right of any person to claim compensation under section 124 shall not affect the right of any such person to recover compensation payable under the Workmen’s Compensation Act, 1923 (8 of 1923), or any other law for the time being in force; but no person shall be entitled to claim compensation more than once in respect of the same accident.
- (2) Nothing in sub-section (1) shall affect the right of any person to claim compensation payable under any contract or scheme providing for payment of compensation for death or personal injury or for damage to property or any sum payable under any policy of insurance.